

CV-26-001860 SELFHELP ENTERPRISES vs NORTHEAST TERRITORIES PATTERSON LLC – Defendant’s Demurrer to Amend Complaint of Plaintiff Self-Help Industries – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: As a preliminary matter, the Court requires more information relative to 2 points raised in the opposition before ruling on the demurrer herein. First, the Court proposes to take judicial notice of the fact that VOP 2.1, LLC's corporate status is currently suspended in California. While Plaintiff makes this argument in the opposing memorandum and Defendant does not expressly deny it in the reply, no request for judicial notice or supporting evidence has been submitted in this regard. Therefore, the parties shall appear at the time of the hearing to present information relevant to the propriety of taking judicial notice of the above matter.(Evid. Code § 455.) In addition, the parties shall be prepared to discuss the appropriate course of action as to VOP 2.1, LLC's ability to pursue the instant demurrer in defense of the litigation in the event the Court does determine to take judicial notice of this fact. Next, the Court notes Plaintiff's representation that Northeast Territories Patterson, LLC is being dismissed from the case, rendering that defendant's arguments on demurrer moot. No request for dismissal appears in the Court's file at this point in time; if the same is not on file by the time of the hearing, the parties shall appear to advise the Court on this issue. The following are the tentative rulings for cases calendared before Judge Sony S. Sandhu in Department 24:

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